



Bill Number: S.B. 1275

Gowan Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes the ability of a judge to impose a lesser prison sentence or suspend the sentence in lieu of probation when sentencing a defendant for certain crimes that require a mandatory prison term.
2. Allows a county attorney to establish a Veterans Diversion Program (Program) for the purpose of prosecuting, adjudicating and treating a defendant with a mental health condition related to the defendant's military service.
3. Specifies that the county attorney has sole discretion to decide whether to divert the prosecution of an offender.
4. Specifies that the Program may be structured to require an offender to plead guilty before entry into the Program and may provide for the dismissal of a criminal complaint on successful completion of the Program.
5. Requires the criteria and guidelines for entry into the Program to be developed and agreed to by the presiding judge and the prosecutor.

GOWAN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1275
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title ~~[13]~~ [11], chapter ~~[7-]~~ [2], [article 11.] Arizona
3 Revised Statutes, is amended by adding section ~~[13-722]~~ [11-366], to read:

4 ~~[13-722:]~~ [11-366.] Veterans diversion program; definitions

5 ~~[A. NOTWITHSTANDING ANY OTHER LAW, WHEN SENTENCING A DEFENDANT WHO~~
6 ~~IS CONVICTED OF AN OFFENSE THAT REQUIRES A MANDATORY TERM OF IMPRISONMENT,~~
7 ~~THE COURT MAY IMPOSE A LESSER TERM OF IMPRISONMENT OR SUSPEND THE SENTENCE~~
8 ~~AND IMPOSE A TERM OF PROBATION IF THE COURT FINDS THAT ALL OF THE~~
9 ~~FOLLOWING APPLY:]~~

10 ~~1. IMPOSING THE MANDATORY TERM OF IMPRISONMENT WOULD RESULT IN AN~~
11 ~~INJUSTICE TO THE DEFENDANT.]~~

12 ~~2. THE MANDATORY TERM OF IMPRISONMENT IS NOT NECESSARY FOR THE~~
13 ~~PROTECTION OF THE PUBLIC.]~~

14 ~~3.]~~ [A.] ~~[THE]~~ [A COUNTY ATTORNEY MAY ESTABLISH A VETERANS
15 DIVERSION PROGRAM FOR THE PURPOSE OF PROSECUTING, ADJUDICATING AND
16 TREATING A] DEFENDANT [WHO] HAS A MENTAL HEALTH CONDITION RELATED TO THE
17 DEFENDANT'S] ~~:-~~

18 ~~(a)]~~ MILITARY SERVICE IF THE DEFENDANT IS A MILITARY MEMBER OR
19 VETERAN.]

20 ~~[(b)] EMPLOYMENT AS A FIRST RESPONDER IF THE DEFENDANT IS OR WAS A~~
21 ~~FIRST RESPONDER.]~~

22 [B. THE COUNTY ATTORNEY HAS SOLE DISCRETION TO DECIDE WHETHER TO
23 DIVERT, BEFORE A GUILTY PLEA OR A TRIAL, THE PROSECUTION OF AN OFFENDER,
24 EXCEPT THAT THE VETERANS DIVERSION PROGRAM MAY BE STRUCTURED TO REQUIRE AN
25 OFFENDER TO PLEAD GUILTY BEFORE ENTRY INTO THE VETERANS DIVERSION PROGRAM.
26 THE VETERANS DIVERSION PROGRAM MAY PROVIDE FOR THE DISMISSAL OF A CRIMINAL
27 COMPLAINT ON SUCCESSFUL COMPLETION OF THE VETERANS DIVERSION PROGRAM.]

28 C. EXCEPT AS OTHERWISE PROVIDED IN TITLE 13, THE COUNTY ATTORNEY
29 MAY DIVERT THE PROSECUTION OF A DEFENDANT WHO IS A VETERAN IF THE

1 ~~DEFENDANT MEETS THE CRITERIA AND GUIDELINES FOR ENTRY INTO THE VETERANS~~
2 ~~DIVERSION PROGRAM THAT ARE DEVELOPED AND AGREED ON BY THE PRESIDING JUDGE~~
3 ~~AND THE PROSECUTOR.]~~

4 ~~[B.] [D.] [THIS SECTION DOES NOT APPLY TO A CONVICTION FOR] [A~~
5 ~~DEFENDANT WHO IS CONVICTED OF] ANY OF THE FOLLOWING [OFFENSES IS NOT~~
6 ~~ELIGIBLE TO PARTICIPATE IN THE VETERANS DIVERSION PROGRAM]:~~

7 1. AN OFFENSE INVOLVING THE DEATH OF OR SERIOUS PHYSICAL INJURY TO
8 ANOTHER PERSON.

9 2. A DOMESTIC VIOLENCE OFFENSE AS DEFINED IN SECTION 13-3601 OR A
10 VIOLATION OF CHAPTER 14 OR 35.1 OF THIS TITLE.

11 3. AN OFFENSE IN WHICH THE DEFENDANT ENGAGES IN A CONTINUING
12 CRIMINAL ENTERPRISE.

13 ~~[C. IF THE COURT IMPOSES A LESSER TERM OF IMPRISONMENT OR SUSPENDS~~
14 ~~THE SENTENCE, THE COURT SHALL STATE ON THE RECORD THE REASON FOR DEPARTING~~
15 ~~FROM THE MANDATORY TERM OF IMPRISONMENT.~~

16 ~~D.] [E.]~~ FOR THE PURPOSES OF THIS SECTION:

17 ~~[1. "FIRST RESPONDER" MEANS:~~

18 ~~(a) A PEACE OFFICER.~~

19 ~~(b) A FIREFIGHTER, A FIRE MARSHAL, A FIRE INSPECTOR, AN EMERGENCY~~
20 ~~MEDICAL CARE TECHNICIAN OR A PARAMEDIC.~~

21 ~~(c) A TRIBAL POLICE OFFICER.~~

22 ~~2.] [1.]~~ "MILITARY MEMBER" MEANS AN INDIVIDUAL WHO SERVES IN THE
23 UNIFORMED SERVICES OF THE UNITED STATES, INCLUDING ALL REGULAR, RESERVE
24 AND NATIONAL GUARD COMPONENTS OF THE UNITED STATES ARMY, NAVY, AIR FORCE,
25 SPACE FORCE, MARINE CORPS AND COAST GUARD.

26 ~~3.] [2.]~~ "VETERAN" MEANS AN INDIVIDUAL WHO HAS SERVED IN AND WHO
27 HAS BEEN DISCHARGED, SEPARATED OR RELEASED FROM ACTIVE OR INACTIVE SERVICE
28 IN THE UNIFORMED SERVICES OF THE UNITED STATES, INCLUDING ALL REGULAR,
29 RESERVE AND NATIONAL GUARD COMPONENTS OF THE UNITED STATES ARMY, NAVY, AIR
30 FORCE, SPACE FORCE, MARINE CORPS AND COAST GUARD, UNDER EITHER:

31 (a) HONORABLE CONDITIONS.

32 (b) DISHONORABLE CONDITIONS IF THE PERSON HAS BEEN DIAGNOSED WITH A
33 MENTAL HEALTH CONDITION, INCLUDING:

34 (i) A SUBSTANCE USE DISORDER.

35 (ii) MILITARY SEXUAL TRAUMA.

36 (iii) A TRAUMATIC BRAIN INJURY.

37 (iv) POST-TRAUMATIC STRESS DISORDER.

38 Enroll and engross to conform

39 Amend title to conform

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